

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter the claimant) filed a complaint with the Spanish Agency for Data Protection on 26/04/2023. The complaint is directed against SANTANDER CONSUMER, S.A. with NIF A28122570 (hereinafter the respondent or SC). The grounds for the complaint are as follows: the receipt of postal advertising despite the respondent having addressed the right to object. Along with the complaint, a request sent to the respondent is included; a response dated 07/03/23 addressing the right to object, and a complete copy of the advertising documentation received, showing the claimant's details and the advertising campaign code.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 06/06/2023, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 07/06/2023 as evidenced by the acknowledgment of receipt in the file.

It is not true, as stated in the initiation agreement, that there was no response from the respondent to the AEPD's request for information; on 06/07/2023, a response was received as evidenced by the acknowledgment of receipt, addressing the questions raised by this agency.

THIRD: On 26/07/2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On 05/10/2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR.

FIFTH: Upon notification of the initiation agreement, the respondent submitted a request on 19/10/2023 for an extension of the deadline and a copy of the file; this request was granted on 20/10/2023, extending the deadline by another five days and sending the existing documentation. On 31/10/2023, the respondent submitted a written statement of allegations making the following sole allegation: the manifest annulability of the initiation agreement of the sanctioning procedure given the events that occurred, requesting the declaration of annulability of the initiated agreement.

SIXTH: On 22/11/2023, the instructor of the procedure agreed to open a period for the practice of evidence, agreeing to the following:

- To consider the complaints filed by the claimants and their documentation as reproduced for evidentiary purposes, as well as the documents obtained and generated by the Inspection Services that are part of the file.
- To consider the allegations to the initiation agreement presented by the respondent and the accompanying documentation as reproduced for evidentiary purposes.

SEVENTH: On 12/04/2024, a Proposal for Resolution was issued recommending that the respondent be sanctioned for an infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR, with a fine of €50,000 (fifty thousand euros).

By written request dated 26/04/2024, the respondent requested clarification of the measures indicated in the Proposal that should be implemented, as well as the suspension of the deadline granted for the formulation of allegations to the Proposal and, otherwise, an extension of the deadline for allegations to the Proposal.

By written communication dated 03/05/2024, the instructor of the procedure informed of the impropriety of suspending said deadline, clarifying the measures to be implemented within six months from the finality of the resolution that, in any case, will be issued. Finally, the instructor of the

procedure granted the requested extension of the deadline for allegations to the Proposal for Resolution, by written communication of the same date.

The respondent, by written communication dated 10/05/2024, has alleged, in summary, the following: that the Proposal did not take into account the circumstances present in this case; that it was an involuntary human error committed by an employee of the supplier; that it is Konecta, as the data processor, who caused the error; the inadequacy of the legal fit of the alleged infringement committed by the employee of the processor; the violation of the principle of proportionality regarding the proposed economic sanction.

EIGHTH: From the actions taken in this procedure, the following have been established,

PROVEN FACTS

3/21

FIRST. On 04/26/2023, a written complaint was received by the AEPD from the complainant against the respondent, stating that on 02/27/2023, they sent a letter to the respondent regarding the use of their personal data, requesting that it be used exclusively to manage the Naturgy credit card of which they are the holder; on 04/23/2023, they received advertising related to the granting of a loan, disregarding their request and the response letter received from the respondent on 03/07/2023, in which they expressed the exercise of their right to object to the use of their personal data.

SECOND. The complainant's ID has been submitted.

THIRD. A copy of the letter dated 02/27/2023 sent by the complainant to the respondent regarding the use of their personal data referenced in the first fact has been submitted.

FOURTH. A response letter from the respondent dated 03/07/2023 has been submitted, in which it stated: "(...)

We acknowledge receipt of your letter in which you exercise your right to object to the use of your data for commercial purposes and commercial prospecting...

In accordance with Article 21 of the GDPR and Article 18 of the LOPDGDD, regarding the exercise of the right to object, your right has been effectively exercised, in the terms you expressed in your request.

(...)"

FIFTH. The advertising received by the complainant related to the promotional campaign carried out by the respondent for the Online Pre-Approved Loan in April 2023 has been submitted.

SIXTH. The respondent, in a letter dated 07/06/2023, stated that "It is verified by the respondent that the Complainant sent the request to exercise the right to object to the postal address...

As it could not be otherwise, the Company attends to the request in form and time, sending it to Mr. A.A.A. via certified mail, on 07 March 2023, regarding the approval of his request...

However, the Complainant received, after the confirmation of the attention to his request, a single communication of commercial mail via postal mail.

At the moment these facts were noted, action was taken, without further delay, to enforce the interests of the Complainant concerning their right to object, and evidence from Santander Consumer is attached once rectified on June 9, 2023...

In this regard, once the complaint that is now being answered was notified, Mr. A.A.A.'s claim is duly addressed in the systems of Santander Consumer.

In summary, the incident that led to this complaint has been rectified."

(...)

The cause motivating this complaint is rooted in the human error that occurred during the processing of the request. Indeed, the human error occurred when the employee responsible for manually marking and unmarking the boxes for consent to receive commercial communications... in the Company's systems, failed to change the boxes (from 4 to 7) for sending to NO.

C/ Jorge Juan, 6

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28001 – Madrid

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4/21

of commercial communications whose basis for legitimacy is the legitimate interest of the Company...
(...)

As has been expressed throughout this document, it has been established that this party acted at all times with scrupulous respect for the current regulations, complying with the legally established framework.

(...)"

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issue

The party being claimed in its writing of 10/31/2023 has made a single allegation: ON THE MANIFEST NULLITY OF THE AGREEMENT ISSUED GIVEN THE OCCURRED FACTS, constructing and articulating its argument for nullity based on the fact that in the initiation agreement that was notified to it on 10/11/2023, according to the acknowledgment of receipt in the file, it states that "There is no response from the claimed party to the requested information," and that such assertion does not accurately reflect the occurred facts since on 07/06/2023, the response from the claimed party to the information request from the Agency dated 06/08/2023, in relation to the complaint filed by the claiming party, was submitted at the office of the authority, in due time and form. The in-person submission was carried out at the Agency's Registry due to the impossibility of electronic submission, a matter that was confirmed at different times that week, which necessitated the in-person submission at the same agency, considering that there has been a radical defect in the processing of the procedure which affects the nullity of the initiation agreement.

It is true that the documentation was submitted on 07/06/2023, and this is recorded in the acknowledgment of receipt, but it is also true that due to some computer problem, the aforementioned registry did not have access to the system application until 10/17/2023."

C/ Jorge Juan, 6

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28001 – Madrid

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5/21

Furthermore, on 10/18/2023, the written request from the respondent was received by the AEPD, requesting an extension of the deadline for submissions and a copy of the administrative file. On 10/20/2023, a letter from the Instructor of the procedure was sent, through which the deadline for making submissions was extended by a maximum of five days, calculated from the day following the end of the first submission deadline, in accordance with Article 32 of Law 39/2015, and a copy of the file was provided, in accordance with Article 53.1 a) of the same law. The aforementioned copy included the index of the documents of EXP202307696:

26-04-2023 Claim from the claimant

06-06-2023 Transfer of the claim to the respondent

06-07-2023 Response from the respondent

26-07-2023 Communication to the claimant

05-10-2023 Initiation agreement to the respondent

11-10-2023 Letter to the claimant

18-10-2023 Letter from the respondent

That is to say, the respondent has been informed that their letter and documentation, of which they were provided with all the documents that made up the file, in response to the request for information regarding the transfer of the claim filed by the claimant and the documentation related to the claimed incident, was received on 07-06-2023. Therefore, the inclusion of the lack of response to the aforementioned request in the Initiation Agreement was due to a computer error that resulted in the absence of access to the system application for the said response, which in no case can be considered to have caused defenselessness or affected the right of defense of the respondent, since from the transfer of the copy of the file and the extension of the deadline for making submissions, they have had the opportunity to argue whatever they deemed appropriate regarding the infringement for which they are considered responsible. Nor does it affect the annulability of the act.

Article 48 of the LPACAP, Annulability, establishes that:

- “1. The acts of the Administration that incur any infringement of the legal order, including abuse of power, are annulable.
2. However, a defect in form will only determine annulability when the act lacks the indispensable formal requirements to achieve its purpose or leads to the defenselessness of the interested parties.
3. The performance of administrative actions outside the established time for them will only imply the annulability of the act when the nature of the term or deadline imposes it.”

It should be noted that annulability occurs when the act infringes the legal order, does not meet the indispensable formal requirements to achieve its purpose, causes defenselessness of the interested parties, or is performed outside the established time, being the term or deadline indispensable for the act itself.

However, in the present case, none of the assumptions or requirements for the act to be classified as the respondent claims are met.

C/ Jorge Juan, 6
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28001 – Madrid
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6/21

voidable as there is no defect or flaw that provokes or determines an invalidating irregularity or that can fit into any of the cases of absolute nullity.

Therefore, the respondent cannot rely on the mere inclusion in the initiation agreement of the mention that there was no response to the information request from the AEPD to evade their responsibility regarding the established and evidenced facts, claiming that such exclusion causes them defenselessness.

The respondent has had the opportunity to defend themselves and assert their viewpoints regarding the facts for which they are considered responsible, and the alleged formal defects have not caused them material defenselessness; therefore, it is appropriate to dismiss the invoked flaws.

The A.N. in judgment 2071/2019 of 29/04/2019 stated that “Thus, the jurisprudence has reiterated - SSTs, Chamber 3, of July 12, 2007 (Rec. 92/2003), May 31, 2010 (Rec. 1945/2006), among others - that not every formal or procedural anomaly has invalidating effects, but it is necessary for there to be a violation of the constitutional guarantees provided in Article 24 of the Constitution, accompanied by a real production of defenselessness, that is, that such defects have caused the appellant a real impairment of their right to defense, causing them real and effective harm (SSTC 155/1988, of July 22, 89/1997, of May 5, and 78/1999, of April 26).

In this sense, the Constitutional Court indicates that to appreciate the existence of constitutional injury, it is not enough to have a procedural defect, but it is necessary for this to have translated into material defenselessness, that is, into a real and effective harm, never potential and abstract, to the possibilities of defense in a procedure with the necessary guarantees (SSTC 15/1995, of January 24, and 1/2000, of January 17, among many others). As stated in STC 27/2001, of January 29, there is no material defenselessness if, despite some procedural breach occurring, the parties have been able to defend

their legitimate rights and interests.”

Furthermore, in judgment 1634/2019 of 09/04/2019, it establishes that “Meydis also reports the existence of defenselessness violating Article 24.2 of the Constitution, which is based on the irregularities detailed in the Second Legal Basis.

In this regard, and generally, the doctrine of the Constitutional Court must be recalled, according to which to appreciate the existence of constitutional injury, it is not enough to have a procedural defect, but it is necessary for this to have translated into material defenselessness, that is, into a real and effective harm, never potential and abstract, to the possibilities of defense in a procedure with the necessary guarantees (SSTC 15/1995, of January 24, and 1/2000, of January 17, among many others). As stated in STC 27/2001, of January 29, there is no material defenselessness if, despite some procedural breach occurring, the parties have been able to defend their legitimate rights and interests.

In this sense, jurisprudence has reiterated - SSTS, Chamber 3, of July 12, 2007 (Rec. 92/2003), May 31, 2010 (Rec. 1945/2006), among others - that not every formal or procedural anomaly has invalidating effects, but it is

C/ Jorge Juan, 6

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28001 – Madrid

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7/21

It is necessary for a violation of the constitutional guarantees provided in Article 24 of the Constitution to occur, accompanied by a real production of defenselessness.

Entering into the analysis of the specific infringements reported, regarding the lack of disclosure of the file during the hearing phase, it should be noted that there is a resolution from the Instructor dated March 27, 2017, in the procedure (Pages 371 and 372), which discloses the file and grants a period of 15 working days to submit allegations. Likewise, in the aforementioned resolution of March 27, 2017, the documents present in the procedure were detailed so that copies could be obtained as deemed appropriate, upon prior appointment.

This resolution was notified to Meydis by the State Postal and Telegraph Society on March 28, 2017 (Page 373).

Therefore, it is not true that the file was not disclosed and that access to the file was denied to Meydis, who was able to appear before the AEPD to review the file and obtain copies of it, or could have made an appointment, as warned in the resolution of March 27, 2017, to obtain the copies he deemed appropriate, which he also did not do, so no material defenselessness can be appreciated.

It should also be recalled that according to the repeated doctrine of the Supreme Court, as echoed in, among others, the judgment of October 11, 2012 (Rec. 408/2010), "the nullity of administrative acts could only be appreciated in the specific cases listed in Article 47 LPA (Article 62 of the Law on the Legal Regime of Public Administrations and Common Administrative Procedure, Law 30/1992, of November 26...) and annulment for formal defects only proceeded when the act lacked the indispensable formal requirements to achieve its purpose or produced defenselessness for the interested parties, according to Article 48.2 LPA (Article 63.2 LRJ-PAC)," (...). And finally, we must reiterate that "defenselessness does not occur for these purposes if the interested party has been able to allege and prove in the file whatever he deemed appropriate in defense of his rights and position taken, as well as appeal for reconsideration, a doctrine based on Article 24.1 CE, if he made the allegations he deemed appropriate within the file" (STS February 27, 1991), "if he exercised, in short, all the appropriate resources, both administrative and judicial" (STS of July 20, 1992).

(...) In summary, the defect of form or procedure is not invalidating in itself, but only to the extent that the act lacks the indispensable requirements to achieve its purpose or leads to the defenselessness of the interested parties, as provided in Article 63 LRJPA, and hence it can be purged throughout the procedure and even in contentious-administrative proceedings, a process in which it can be overlooked, for reasons of procedural economy, judging the substance of the matter, both when it would have been non-influential in the decision—so that it would have been the same—and when, even if influential, the decision would have been correct or incorrect, maintaining it in one case and

annulling it in the other, and only being appreciated in the case that the jurisdictional body lacks the necessary elements of judgment for the assessment of the administrative decision."

And the Constitutional Court has pointed out that "the essential content of the constitutional right to be informed of the accusation refers to the punishable facts attributed to the accused" (STC 95/1995). In contrast, and unlike what happens with the facts, the TC, in Judgment 145/1993, warns...

C/ Jorge Juan, 6

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28001 – Madrid

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8/21

that the communication to the alleged infringer of the legal qualification and the potential sanction to be imposed does not constitute the essential content of the right to be informed of the accusation. So important is the notification of the facts constituting the administrative infringement that the Constitutional Court (T.C.) has declared that the requirements of Article 24.2 of the Spanish Constitution (CE) are fundamentally satisfied by the mere communication of the alleged facts in order to allow for a defense against them (STC 2/1987 and 190/1987). In this regard, the Supreme Court, in its ruling of March 3, 2004, states that "the primary purpose of the initiation agreement is to inform about the alleged facts and not about the legal qualification, which will be addressed by the resolution proposal."

Therefore, in light of the above, the allegation made in the response to the initiation agreement must be dismissed.

III

Allegations to the Resolution Proposal

1. Firstly, the responding party insists on alleging the existence of a violation of Article 24.2 of the Constitution due to a lack of defense, as it responded to the request made by the Agency, which is based on the absence detailed in the facts included in the Proposal.

The National Court (A.N.) has pronounced on this issue in numerous rulings, establishing that "In this regard, and in general terms, it should be noted the doctrine of the Constitutional Court according to which, to assess the existence of a constitutional violation, it is not enough to have a procedural defect, but it is necessary that this has resulted in material defenselessness, that is, in a real and effective detriment, never potential and abstract, to the possibilities of defense in a procedure with the necessary guarantees (SSTC 15/1995, of January 24, and 1/2000, of January 17, among many others). As stated in STC 27/2001, of January 29, there is no material defenselessness if, despite some procedural breach occurring, the parties have been able to defend their legitimate rights and interests.

In this sense, the jurisprudence has reiterated - SSTS, 3rd Chamber, of July 12, 2007 (Rec. 92/2003), May 31, 2010 (Rec. 1945/2006), among others - that not every formal or procedural anomaly has invalidating effects, but it is necessary for there to be a violation of the constitutional guarantees provided in Article 24 of the Constitution, which is accompanied by a real occurrence of defenselessness.

2. It also alleges that everything was due to an involuntary human error by an employee of the person in charge who provides services on behalf of the responding party, when this person was responsible for manually marking or unmarking the boxes of consent and omitted to mark "No" for the purposes of sending commercial advertising, making the alleged infringement difficult to legally categorize. It should be noted that, given the established typical conduct, the unlawfulness of the processing of the claimant's data, in accordance with the provisions of

9/21

Article 6.1 of the GDPR establishes that it has been demonstrated that the right to object to the use of personal data for commercial purposes has been exercised; the issue focuses on determining whether such conduct can give rise to administrative liability.

The respondent requests that the case be archived, arguing that the alleged infringement does not have a legal basis.

Objective liability is prohibited in our legal system. In the realm of sanctioning Administrative Law, the

principle of culpability applies, such that the subjective or culpability element is an indispensable condition for the emergence of sanctioning liability. Article 28 of Law 40/2015, on the Legal Regime of the Public Sector (LRJSP), regulates the principle of culpability and states:

“1. Only individuals and legal entities may be sanctioned for acts constituting administrative infringements, as well as, when a law recognizes their capacity to act, groups of affected parties, unions, and entities without legal personality and independent or autonomous estates, who are held responsible for them on the basis of intent or fault.”

In accordance with this provision, sanctioning liability can be demanded on the basis of intent or fault, with mere failure to observe the duty of care being sufficient in the latter case.

The Constitutional Court, among others, in its ruling STC 76/1999, has declared that administrative sanctions share the same nature as criminal sanctions, being one of the manifestations of the State's *ius puniendi*, and that, as a requirement derived from the principles of legal certainty and criminal legality enshrined in Articles 9.3 and 25.1 of the Constitution, their existence is essential for imposing them.

Regarding the culpability of legal entities, it is worth citing STC 246/1991, December 19, 1991 (F.J. 2), which states that, concerning legal entities, the subjective element of fault must necessarily be applied differently than it is for individuals, and adds that “This different construction of the attribution of the authorship of the infringement to the legal entity arises from the very nature of the legal fiction to which these subjects respond. They lack the volitional element in the strict sense, but not the capacity to infringe the norms to which they are subject. The capacity to infringe and, therefore, direct reproachability derives from the legal good protected by the norm that is infringed and the necessity for such protection to be truly effective [...]”

The decision to archive a sanctioning file may be based on the absence of the element of culpability when the responsible party for the unlawful conduct has acted with all due diligence required of them. It is worth recalling what STC 246/1991 has stated regarding the culpability of legal entities: that they do not lack the “capacity to infringe the norms to which they are subject.” “Capacity to infringe [...] that derives from the legal good protected by the norm that is infringed and the necessity for such protection to be truly effective [...]”.

C/ Jorge Juan, 6
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28001 – Madrid
sedeagpd.gob.es
10/21

In connection with the above, reference must be made to Article 5.2 of the GDPR (principle of proactive responsibility), according to which the data controller shall be responsible for compliance with the provisions of paragraph 1 and capable of demonstrating such compliance. The principle of proactivity transfers to the data controller the obligation not only to comply with data protection regulations but also to be able to demonstrate such compliance.

Opinion 3/2010, from the Article 29 Working Party (WP29) -WP 173- issued during the validity of the repealed Directive 95/46/EC, but whose reflections are applicable today, states that the “essence” of proactive responsibility is the obligation of the data controller to implement measures that, under normal circumstances, ensure that data protection standards are met in the context of processing operations and to have available documents that demonstrate to data subjects and supervisory authorities what measures have been adopted to achieve compliance with data protection regulations. And on this matter, one must not forget Article 24.1 of the GDPR, which regarding the responsibility of the data controller states: “Taking into account the nature, scope, context, and purposes of the processing as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the data controller shall implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is performed in accordance with this Regulation. Such measures shall be reviewed and updated when necessary.”

It should be noted what diligence was observed by the responding party in relation to the conduct that should have been observed concerning the examined behavior. The answer is that the diligence that should have been observed was the precise one to fulfill the obligations imposed by Article 6.1 of the

GDPR, which motivated the opening of the procedure.

Therefore, in accordance with the principle of proactivity, the responding party did not adopt a diligent attitude, as there was a clear absence of diligence, since, after having ensured that it had taken the appropriate and necessary actions to prevent the repeated sending of advertising emails and thus avoid incidents like those that led to the complaint and the opening of the procedure, the affected party again received new advertising emails referencing promotions from the responding party, infringing data protection regulations, Article 6.1 GDPR, behavior and conduct existing in the present case, evidencing a lack of diligence.

3. The responding party alleges that it is Konecta, as the data processor, that is the cause of the error produced.

Article 4 of the GDPR, Definitions, includes in its paragraphs 7 and 8 those relating to the data controller and the data processor, establishing that:

7) "data controller" or "controller": the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States...

C/ Jorge Juan, 6

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28001 – Madrid

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11/21

determines the purposes and means of processing, the data controller or the specific criteria for their appointment may be established by Union Law or the laws of the Member States;

8) "data processor" or "processor": the natural or legal person, public authority, service, or other body that processes personal data on behalf of the data controller.

That is to say, from these definitions, it follows that the processor is limited to processing the information on behalf of the controller, while the controller, and not the processor, will be the one making decisions regarding the processing of personal data, except for those decisions made for technical and organizational reasons that could be delegated.

Thus, from an assessment of the documentation provided in the file, it can only be concluded that the party that has determined the purposes and means of processing is the party being claimed against, which means that the identified infringement, a violation of the principle of lawfulness in the processing of data: Article 6.1 of the GDPR and classified under Article 83.5.a) of the same GDPR, is attributed to the data controller, the party being claimed against.

On the other hand, the existence of a data processor depends on a decision made by the data controller, who may decide to carry out certain processing operations themselves or to contract all or part of the processing to a processor.

The essence of the function of the data processor is that personal data is processed in the name and on behalf of the data controller. In practice, it is the controller who determines the purpose and the means, at least the essential ones, while the data processor has the function of providing services to the data controllers. In other words, "acting in the name and on behalf of the data controller" means that the data processor is serving the interest of the data controller in carrying out a specific task and, therefore, follows the instructions established by the controller, at least concerning the purpose and essential means of the entrusted processing.

The data controller is the one who has the obligation to ensure compliance with data protection regulations and the protection of the rights of data subjects, as well as to be able to demonstrate it (Articles 5.2, 24, 28, and 32 of the GDPR). The control of compliance with legality extends throughout the processing, from beginning to end. The data controller must act, in any case, diligently, consciously, committedly, and actively.

This mandate from the legislator is independent of whether the processing is carried out directly by the data controller or whether it is performed using a data processor.

Furthermore, the processing materially executed by a data processor on behalf of the data controller belongs to the sphere of action of the latter, just as if it were carried out directly by the controller themselves.

C/ Jorge Juan, 6
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28001 – Madrid
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12/21

The data processor, in the examined case, is an extension of the data controller.

In establishing the responsibility of the data processor for violations of the GDPR, its Article 28.10 also addresses the criterion of determining the purposes and means of processing. According to this article, if the processor determines the purposes and means of processing, it will be considered responsible for it:

“10. Without prejudice to the provisions of Articles 82, 83, and 84, if a data processor infringes this Regulation by determining the purposes and means of processing, it shall be considered responsible for the processing in relation to that processing.”

Therefore, Konecta could be considered responsible for the processing if it acted, “(...) outside or against the legal instructions of the controller (...).”

On the contrary, from the statements made by the respondent, it has been established that Konecta, as the data processor, sent the postal advertising to the claimant, violating its own decision to respect the right of opposition exercised by the claimant regarding the use of their data for commercial and prospecting purposes, advertising that referred to offers from the respondent, with promotional phrases such as: Pre-Approved Online Loan.

In any case, Konecta sent the advertising in accordance with the guidelines of the respondent and promoting its services. Therefore, it is established that the ultimate responsible party for the events that occurred is the respondent.

4. To conclude, the respondent alleges a violation of the principle of proportionality in the imposition of the sanction.

It should be noted that Article 83.1 of the GDPR states that “Each supervisory authority shall ensure that the imposition of administrative fines in accordance with this article for the infringements of this Regulation referred to in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.”

Fines, therefore, as deduced from the preceding provision, must be effective, proportionate, and dissuasive to achieve the purpose intended by the GDPR.

It is true that for this system to function with all its guarantees, it is necessary for several elements to be deployed in an integral and complete manner. The application of rules foreign to the GDPR regarding the determination of fines in each of the Member States applying their national law, whether due to aggravating or mitigating circumstances not provided for in the GDPR - or in the LOPDGDD in the Spanish case as permitted by the GDPR itself - would undermine the effectiveness of the system, losing its meaning, its teleological purpose, the will of the legislator, resulting in fines imposed for different infringements ceasing to be effective, proportionate, and dissuasive. And in this way, the interested parties would also be deprived of their rights.

C/ Jorge Juan, 6
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28001 – Madrid
sedeagpd.gob.es
13/21

of the effective guarantee of their rights and freedoms, weakening the uniform application of the GDPR. The mechanisms for protecting the rights and freedoms of citizens would be diminished, which would be contrary to the spirit of the GDPR.

The GDPR is endowed with its own principle of proportionality that must be applied in its strict terms. Regarding the principle of proportionality of sanctions, the National Court has pointed out in numerous rulings that the principle of proportionality cannot be exempt from judicial review, as the margin of appreciation granted to the Administration in imposing sanctions within the legally established limits must be developed by weighing, in any case, the concurrent circumstances, in order to achieve the

necessary and due proportion between the alleged facts and the responsibility required, given that any sanction must be determined in accordance with the severity of the infringement committed and according to a criterion of proportionality in relation to the circumstances of the fact. Thus, proportionality constitutes a normative principle that is imposed on the Administration and that reduces the scope of its sanctioning powers.

Well, in accordance with the circumstances present in this case, this resolution does not violate the principle of proportionality in determining the imposed sanctions, resulting in a measured and proportionate response to the severity of the infringement committed, the importance of the facts, as well as the circumstances taken into account to grade the sanction, without any reasons being appreciated that further justify the reduction made, especially considering the amount to which such sanctions may rise in accordance with Article 83.5 of the GDPR, which provides for a maximum administrative fine of €20,000,000 or, in the case of a company, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount.

Well, the entity being claimed is a large company within its sector of activity; in 2022 it had an operating result of €1.601 billion and a net profit of €1.321 billion.

IV

Unfulfilled obligation: infringement of Article 6.1 of the GDPR

The reported facts materialize in the receipt of postal advertising after the right of opposition was exercised by the claimant, which could violate the regulations on the protection of personal data.

Article 58 of the GDPR, Powers, states:

“2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, when appropriate, in a specified manner and within a specified time;

(...)

i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;

(...)”

Article 5 of the GDPR, Principles relating to processing, establishes that:

“1. Personal data shall be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject (‘lawfulness, fairness, and transparency’);

(...)”

Furthermore, Article 6.1 of the GDPR establishes the circumstances that allow for the lawful processing of personal data:

“1. Processing shall be lawful only if at least one of the following applies:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;

c) processing is necessary for compliance with a legal obligation to which the controller is subject;

d) processing is necessary to protect the vital interests of the data subject or of another natural person.

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

Likewise, Recital 40 of the aforementioned GDPR states that “For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis laid down by law, whether in this Regulation or by virtue of other Union or Member State law to which this

Regulation applies, including the necessity of complying with a legal obligation applicable to the controller or to the...

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
15/21

the necessity to execute a contract in which the interested party is a party or in order to take measures at the request of the interested party prior to the conclusion of a contract."

On the other hand, Article 4 of the GDPR, Definitions, in its paragraphs 1, 2, and 11, states that:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

"2) 'processing': any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction;

"11) 'consent of the data subject': any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which they, by a statement or by a clear affirmative action, signify agreement to the processing of personal data relating to them."

The processing of personal data requires the existence of a legal basis that legitimizes it.

In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of its owner, in particular, when it is necessary for the performance of a contract in which the data subject is a party or for the application, at their request, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or fundamental rights and freedoms of the data subject which require the protection of such data. Processing is also considered lawful when it is necessary for compliance with a legal obligation to which the data controller is subject, to protect vital interests of the data subject or of another natural person, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.

It is recorded that the claiming party on 27/02/2023 sent a written communication to the claimed party exercising their right to object to the use of their data for commercial purposes.

It is also recorded the written communication dated 07/03/2023 sent to the claiming party in response to their request, informing them that note was being taken.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
16/21

and to exercise your right in the terms indicated: "We acknowledge receipt of your letter where you exercise your right to object to the use of your data for commercial purposes and commercial prospecting..."

In accordance with Article 21 of the GDPR and Article 18 of the LOPDGDD, regarding the exercise of the right to object, your right has been effectively exercised, in the terms you expressed in your request."

However, in April 2023, that is, after the previous communication in which the responding party informed you that it was complying with your right to object to the use of your personal data for commercial purposes and commercial prospecting, the claimant was sent advertising related to a

promotional campaign concerning the granting of an Online Pre-Approved Loan, disregarding what was indicated in the response provided to the exercise of your right.

Therefore, it is not acceptable as the responding party states that “once the complaint that is now being answered was notified, Mr. A.A.A.'s claim is duly addressed in Santander Consumer's systems. In summary, the incident that gave rise to this complaint has been remedied.”

And it further states that “it has been demonstrated that this party acted at all times with scrupulous respect for the current regulations, complying with the legally established framework.”

On the contrary, the negligence in the infringement is evident, as there is a clear lack of due diligence on the part of the responding party in managing the claimant's right to object, since, after assuring that it had taken the necessary steps to ensure that no new advertising emails would be sent, the claimant received another advertising email referencing promotions from the responding party.

Therefore, it is considered that the conduct of the respondent violates the principle of lawfulness enshrined in Article 6.1 of the GDPR, classified in Article 83.5 a) of the GDPR.

V

Classification of the infringement of Article 6.1 of the GDPR

The infringement attributed to the respondent is classified in Article 83.5 a) of the GDPR, which states that the infringement of “the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9” is subject to penalties, in accordance with paragraph 5 of the aforementioned Article 83 of the said Regulation, “with administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount.”

The LOPDGDD in its Article 71, Infringements, states that: “Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements.”

And in its Article 72, it considers for the purposes of prescription that they are: “Infringements considered very serious:

1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, those infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe after three years, particularly the following:

(...)

b) The processing of personal data without any of the conditions for lawfulness of processing established in Article 6 of Regulation (EU) 2016/679.

(...)”

VI

Penalty for non-compliance with Article 6.1 of the GDPR

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 is effective, proportionate, and dissuasive in each individual case.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and detriment they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
18/21

- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or the processor notified the infringement and, if so, to what extent;
 - i) when the measures indicated in Article 58(2) have previously been ordered against the controller or the processor in question in relation to the same matter, the compliance with such measures;
 - j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42; and
 - k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.
- In relation to point k) of Article 83(2) of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:

"2. According to the provisions of Article 83(2)(k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party."

- According to the transcribed provisions, for the purpose of determining the amount of the fine to be imposed in this case for the infringement of Article 6(1) of the GDPR, classified in Article 83(5)(a) of the GDPR for which the respondent is held responsible, the following circumstances are deemed concurrent:

The nature, gravity, and duration of the infringement: the facts revealed seriously affect a fundamental issue in data protection, such as the principle of lawfulness, which the regulation penalizes with the utmost severity; the right to object was exercised by the complainant and was acknowledged by the respondent, who then processed the complainant's personal data again without any legitimacy for its use for commercial and marketing purposes, sending commercial advertising to which the complainant had precisely objected in exercising their right to object (Article 83(2)(a) of the GDPR).

The activity of the allegedly infringing entity is linked to the processing of data of both clients and third parties. In the activity of the entity

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
19/21

The respondent's processing of personal data is essential; therefore, given its business volume, the significance of the conduct subject to this claim is undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

The intent or negligence in the infringement; as the respondent has acted with serious lack of diligence in its actions, such as sending commercial advertising to the claimant, violating the response it had

offered to the exercise of the right to object. Connected with the degree of diligence that the data controller is obliged to demonstrate in fulfilling the obligations imposed by data protection regulations, the SAN of 17/10/2007 can be cited. Although it was issued before the validity of the GDPR, its ruling is perfectly extrapolable to the case we are analyzing. The judgment, after referring to the fact that entities whose activities involve continuous processing of data from clients and third parties must observe an adequate level of diligence, specified that "(...) the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. In assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard" (Article 83.2.b) of the GDPR).

The business volume of the respondent, as it is a leading company in consumer financing not only within the Spanish market due to its business purpose (Article 83.2.k) of the GDPR).

VII

Adoption of Measures

The corrective powers that the GDPR attributes to the AEPD as the supervisory authority are listed in Article 58.2, paragraphs a) to j).

Having confirmed the infringement, it is appropriate to order the controller to adopt adequate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

Therefore, it would be deemed appropriate to order the respondent, within six months from the finality of the resolution that, in any case, is issued, to adjust the processing activities subject to this procedure to the applicable regulations. The text of this agreement establishes what the facts have been that led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the type of procedures, mechanisms, or specific instruments to implement them.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

20/21

correspond to the sanctioned party, as it is the one that fully understands its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGGD. Specifically, appropriate measures must be adopted to ensure that the rights of opposition exercised by the data subjects and acknowledged by the complained entity are taken into account when carrying out any type of promotional campaign.

It is warned that failure to comply with the order imposed by this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on SANTANDER CONSUMER FINANCE, S.A., with NIF A28122570, for an infringement of article 6.1 of the GDPR, classified in article 83.5.a) of the GDPR, a fine of €50,000 (fifty thousand euros).

SECOND: TO ORDER SANTANDER CONSUMER FINANCE, S.A., with NIF A28122570, that

pursuant to article 58.2.d) of the GDPR, within 6 months from the date this resolution becomes final and enforceable, to prove that it has proceeded to adapt the treatments subject to this procedure to the applicable regulations, specifically to scrupulously address the exercise of rights by the data subjects in compliance with the requirements of data protection regulations, legitimizing the processing in accordance with article 6.1 of the GDPR.

THIRD: TO NOTIFY this resolution to SANTANDER CONSUMER FINANCE, S.A.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right.

The sanctioned party is warned that it must comply with the imposed sanction once this resolution is enforceable, in accordance with the provisions of article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

21/21

Upon receipt of the notification and once it is enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with article 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of article 90.3 a) of the LPACAP, the final administrative resolution may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

Mar España Martí
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C/ Jorge Juan, 6

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